

SENATE BILL 350

By Harshbarger

AN ACT to amend Tennessee Code Annotated, Title 66,
relative to leases.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 66, Chapter 7, is amended by adding the following as a new section:

66-7-113.

(a) On and after July 1, 2025, a landlord shall not prohibit a tenant or a tenant's guest from lawfully possessing, carrying, transporting, or storing a firearm, any part of a firearm, or firearm ammunition in the tenant's home, apartment, or business; in a vehicle located in a parking area provided for tenants or tenants' guests by the landlord of the leased premises; or in other locations controlled by the landlord as necessary to enter or exit the tenant's home, apartment, or business, to enter or exit the leased premises, or to enter or exit a vehicle located on the leased premises or in a parking area provided by the landlord for tenants or tenants' guests.

(b)

(1) An existing lease that is in effect on July 1, 2025, that contains lease terms relative to firearms that are in violation of subsection (a) may, for purposes of other lease terms that do not violate subsection (a), remain in effect and must be amended to comply with subsection (a) prior to July 1, 2026. However, on and after July 1, 2025, any such lease terms relative to firearms that are in violation of subsection (a) are void and unenforceable.

(2) An existing lease described in subdivision (b)(1) is not in violation of subsection (a) until July 1, 2026, as long as the lease terms relative to firearms that are in violation of subsection (a) are not enforced and the lease is amended to comply with subsection (a) prior to July 1, 2026.

(3) This subsection (b) does not prohibit a landlord and tenant from voluntarily entering into a new lease agreement prior to July 1, 2026, to replace an existing lease that contains lease terms relative to firearms that are in violation of subsection (a).

(c) A tenant who is adversely affected by a violation of subsection (a) may bring a suit against the landlord for actual damages, punitive damages, and recovery of attorney fees.

SECTION 2. Tennessee Code Annotated, Title 66, Chapter 28, Part 2, is amended by adding the following as a new section:

66-28-206.

(a) On and after July 1, 2025, a landlord shall not prohibit a tenant or a tenant's guest from lawfully possessing, carrying, transporting, or storing a firearm, any part of a firearm, or firearm ammunition in the tenant's home, apartment, or business; in a vehicle located in a parking area provided for tenants or tenants' guests by the landlord of the leased premises; or in other locations controlled by the landlord as necessary to enter or exit the tenant's home, apartment, or business, to enter or exit the leased premises, or to enter or exit a vehicle located on the leased premises or in a parking area provided by the landlord for tenants or tenants' guests.

(b)

(1) An existing lease that is in effect on July 1, 2025, that contains lease terms relative to firearms that are in violation of subsection (a) may, for purposes

of other lease terms that do not violate subsection (a), remain in effect and must be amended to comply with subsection (a) prior to July 1, 2026. However, on and after July 1, 2025, any such lease terms relative to firearms that are in violation of subsection (a) are void and unenforceable.

(2) An existing lease described in subdivision (b)(1) is not in violation of subsection (a) until July 1, 2026, as long as the lease terms relative to firearms that are in violation of subsection (a) are not enforced and the lease is amended to comply with subsection (a) prior to July 1, 2026.

(3) This subsection (b) does not prohibit a landlord and tenant from voluntarily entering into a new lease agreement prior to July 1, 2026 to replace an existing lease that contains lease terms relative to firearms that are in violation of subsection (a).

(c) A tenant who is adversely affected by a violation of subsection (a) may bring a suit against the landlord for actual damages, punitive damages, and recovery of attorney fees.

SECTION 3 Tennessee Code Annotated, Section 66-28-402(a), is amended by adding the following new subdivision:

(7) The rule or regulation does not violate § 66-28-206.

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.